

Ram Ladaite v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 31 January 2023 · WRIT - C No. - 3369 of 2023
· **Writ disposed of as withdrawn with liberty to approach the CGRF under clause 7.10.**

HEADNOTE

A writ against recovery citations for electricity dues was disposed of as withdrawn after the Electricity Department pointed to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, with liberty to avail that remedy or any other remedy as advised.

FACTUAL SUMMARY

Ram Ladaite approached the Allahabad High Court against the State of Uttar Pradesh and three others, challenging recovery citations dated 25 June 2018 and 14 July 2021 issued by respondent no. 3 for electricity dues. Counsel for the Electricity Department submitted that the grievance could be raised before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The petitioner then sought liberty to pursue that forum and asked that the writ petition be withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF remedy for recovery of electricity dues

HOLDING

The writ petition is disposed of as withdrawn, with liberty to the petitioner to raise the grievance against the recovery citations before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, or to avail such other remedy as may be advised. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10

On the Electricity Department's submission that clause 7.10 of the U.P. Electricity Supply Code, 2005 provided a Consumer Grievance Redressal Forum for the recovery citations, the petitioner withdrew the writ and was given liberty to avail that remedy or any other remedy as advised. The citations were not examined. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY CITATIONS DATED 25 JUNE 2018 AND 14 JULY 2021 FOR ELECTRICITY DUES

Left open on withdrawal, with liberty to raise the grievance before the forum or such other remedy as advised. ¶ 1